Filing # 255441001 E-Filed 08/21/2026 09:25:40 PM

IN THE DISTRICT COURT OF APPEAL OF FLORIDA, SECOND DISTRICT

CHRISTOPHER A. HANSON,

Petitioner,

v.

SARAH SORGIE HANSON,

Respondent.

Case No. [NEW CASE NUMBER TO BE ASSIGNED]

L.T. No. 24-DR-001150 (Fla. 13th Cir.)

PETITION FOR WRIT OF CERTIORARI

Petitioner, Christopher A. Hanson, self-represented, petitions this Court for a writ of certiorari quashing specified terms of the Amended Order Appointing Guardian ad Litem entered August 4, 2026, and of the Order Appointing Guardian ad Litem entered July 23, 2026, by the Circuit Court of the Thirteenth Judicial Circuit in and for Hillsborough County.

Naming. In the underlying dissolution case, No. 24-DR-001150, Sarah Sorgie Hanson is the Petitioner and Christopher A. Hanson is the

Respondent. In this certiorari proceeding those designations are reversed. To avoid confusion the parties are called Husband (Christopher A. Hanson) and Wife (Sarah Sorgie Hanson) throughout. The parties' minor children are referred to by initials only.

What this petition challenges. This petition challenges the appointment of a guardian ad litem and the orders that created and implemented it, in their entirety. Husband asks this Court to quash those orders in full. He does not ask this Court to sever any provision. The petition treats particular terms in detail, those governing records, confidentiality, evidence, the guardian's report, immunity and waiver of claims, the guardian's counsel, and speech, because those terms show what the orders do. That treatment identifies what is wrong with the orders. It does not narrow the relief requested. Husband has a separate certiorari proceeding pending in this Court, No. 2D2026-1955, and a motion for leave to amend the petition in that proceeding is pending.

I. BASIS FOR INVOKING THE JURISDICTION OF THE COURT

1. This Court has certiorari jurisdiction under article V, section 4(b)(3) of the Florida Constitution and Florida Rules of Appellate Procedure 9.030(b)(2)(A) and 9.100(c)(1). The orders under review are non-final

orders in a family law proceeding that are not appealable under rule 9.130.

2. The standard is three-part: a departure from the essential requirements of the law, resulting in material injury for the remainder of the case, that cannot be corrected on postjudgment appeal. *Deutsche Bank Nat'l Trust Co. v. Prevratil*, 120 So. 3d 573, 575 (Fla. 2d DCA 2013); *see Vericker v. Powell*, 406 So. 3d 939, 942 (Fla. 2025) (stating the three-part test and noting that the last two prongs together are referred to as irreparable harm, an inquiry that "presents a threshold jurisdictional" question).
3. **Timeliness.** The Order Appointing Guardian ad Litem was entered July 23, 2026. The Amended Order Appointing Guardian ad Litem, which contains the complete text of the terms challenged here, was entered August 4, 2026. This petition is filed within thirty days of the earlier of those two dates and is therefore timely as to both. Fla. R. App. P. 9.100(c)(1).
4. **Irreparable harm, stated at the outset because it is jurisdictional.** The irreparable harm is not based on monetary loss. Husband told this Court so in his pending petition in No. 2D2026-1955, at paragraph 56, and the position is unchanged. Monetary loss is ordinarily remediable on

appeal, although the facts of this case create an increased risk of irreparable harm. Independently, irreparable harm exists from the order under review on five separate grounds, none of them monetary.

(a) The order authorizes the adjudication of parental rights on evidence a parent is forbidden to obtain. Paragraph 14 admits the guardian's hearsay, and hearsay within hearsay, from undisclosed sources. Paragraph 12 places the material underlying it beyond either parent's reach "in any manner" and "for any reason." The injury is to the existence of a reviewable record. An appellate court reviewing a timesharing judgment built on paragraph 14 material would have the guardian's conclusions and none of the inputs, and no remand recreates a cross-examination that the order forbade.

(b) The order extinguishes causes of action. Paragraph 18 recites that "[e]ach party hereby waives any and all claims they may have or shall have in the future." A prospective release of unaccrued claims is not a timesharing ruling, will not be reached in an appeal from a timesharing judgment, and is complete on entry.

(c) The order suppresses speech on command. Paragraph 19 directs that "[a]ny postings to social media about the case shall be

immediately removed." Speech suppressed today is not restored by a judgment entered later. Each day the restraint operates is a completed injury.

(d) As to the payment terms, the sanction actually sought for nonpayment is not money. It is a reduction of Husband's time with the children from equal timesharing to alternate weekends, requested as a contempt sanction in Wife's motion of August 4, 2026. Time with a child that a parent does not get is not returned by an appellate opinion.

(e) The order records agreements no party made, and that feature operates on every harm above. Seven of its provisions recite consent or waiver: the statutory notice requirement, the requirement of separate counsel, the records procedure, the guardian's report, all hearsay rules, all present and future claims, and the speech restriction, which paragraph 19 calls "this contract." No stipulation to any of these terms appears in this record, and Husband moved to vacate them on July 28, 2026 and again on August 16, 2026. The injury is to review itself. Recitals of consent, once entered, stand available to be cited against Husband at every later stage as the answer to any challenge he brings, including on the postjudgment

appeal that is supposed to be the remedy for everything else in this order. An order that records the waiver of the right to contest it forecloses its own review. Husband draws no inference about how these features arose.

5. The children's interest is at the center of each of these, including the financial concern. The order will have significant impact on the stability and foundation of two girls, ages seven and eight. The person appointed to represent that interest has, on this record and by her own written statement filed by Wife, declined to begin work on the children's file because a retainer was not paid in full.

II. THE FACTS ON WHICH PETITIONER RELIES

6. **The record universe of this petition.** Every factual statement below is drawn from the four corners of the orders under review, from Wife's own filings and their exhibits, and from orders of the trial court. This petition relies on no transcript and characterizes no testimony.
7. **Husband's stated objective, from his first filing.** On May 16, 2024, Husband filed the response that also moved to compel evidence of marital assets and financial information. He stated: "Respondent has pleaded with Petitioner to provide the requested financial information

without the need for attorney involvement although she has continued to refuse." In the next paragraph he explained the conduct Wife's later filings quote against him: "Respondent momentarily refused to provide payment for expenses, certainly in part out of anger and frustration, but primarily in hopes that Petitioner would simply provide the requested bank statements without the need to spend money on" counsel. (Doc. 22, App. 78 to 83.) That motion has never been ruled on. As of the filing of this petition it has been pending 827 days.

8. **The appointment.** On June 25, 2026, the trial court granted Wife's motion to appoint a guardian ad litem for the parties' two minor children. (App. 60-61.)
9. **The July 23 order.** On July 23, 2026, the trial court entered an Order Appointing Guardian ad Litem naming Alexa A. Rodriguez, Esq., of AAR Family Law, PLLC, and setting the terms of the appointment. As that order appears in the clerk's docketed image, it is five pages, and those five pages correspond to pages one, three, five, seven, and nine of the nine-page instrument later entered on August 4. At each of the four page breaks the text resumes in the middle of a sentence. The footers applied at filing number the five pages "Page 1" through "Page 5" consecutively, so nothing in the pagination discloses the omission. Of the order's

twenty numbered paragraphs, seven appear nowhere in any form, four appear only as unnumbered fragments continuing from a page that is absent, four are numbered but cut off at the foot of a page, and five are complete. Paragraphs 17 and 18 are among those that appear nowhere. Paragraph 19 appears only as a fragment beginning mid-provision. (App. 2-6.)

10. **The August 4 amended order.** On August 4, 2026, at 4:58 p.m., the trial court entered the Amended Order Appointing Guardian ad Litem. It is nine pages and contains the complete text of every term challenged here. It is the order this petition principally asks this Court to review. (App. 7-15.)

11. **The findings.** The entire findings content of the nine-page order is one sentence: "**THIS COURT**, finds it to be in the best interest of the parties' minor child(ren), H.H.G., and H.H.G., to appoint a Guardian *ad Litem* on behalf of the minor child(ren)." (Doc. 365, App. 7.) That sentence states the same initials twice, and those initials are not the initials of either child. The order also resolves none of its "child(ren)" parentheticals anywhere in its nine pages. The order contains no finding about records, about evidence, about immunity, about claims, or about speech.

12. **The source of authority the order claims.** Paragraph 2 states that the guardian's authority comes from section 61.403, Florida Statutes. (Doc. 365, App. 7.)

13. **The order purports to act as an agreement binding the parties.** Seven provisions recite party consent or waiver: paragraph 3 ("The parties specifically waive the notice requirements as set forth in section 61.403(1), Fla. Stat., to the fullest extent allowed by law"); paragraph 6 ("the parties waive any requirement"); paragraph 11 ("The parties and the Guardian *ad Litem* agree"); paragraph 13 ("the parties may waive the requirement of a report"); paragraph 14 ("the parties expressly waive all hearsay rules"); paragraph 18 ("Each party hereby waives any and all claims"); and paragraph 19 ("The parents acknowledge," "this specific waiver," and "the enforcement of **this contract**"). (Doc. 365, App. 8, 8, 10, 11, 13, 14.) No stipulation to any of these terms appears in this record. Husband moved for reconsideration and vacatur on July 28, 2026, and again on August 16, 2026. Husband draws no inference about how these features arose.

14. **The enforcement track.** On August 4, 2026, at 9:49 a.m., Wife moved for a finding of contempt premised on noncompliance with the appointment terms. The complete text of the order she sought to enforce

was signed at 4:58 p.m. the same day. (App. 7-15, 35-43.) On August 7, 2026, the trial court set that motion for hearing on August 27, 2026, at 2:00 p.m. (App. 47-48.)

15. **The objection track.** Husband's verified motion of July 28, 2026 sought reconsideration of the July 23 order, a stay of its obligations, and extension or modification of the retainer deadline. On July 28, 2026, the trial court entered an Emergency Motion Handling Order on which the checked box reads: "The matter is not an emergency and should be handled in the normal course." No hearing date was set in that order. (App. 16-35, 44-45.) The motion also requested a stay under Florida Rule of Appellate Procedure 9.310(a) and has received no ruling on that request.

16. **The payment terms are operating.** Wife's contempt motion states at paragraph 5: "The Guardian Ad Litem has confirmed Respondent has not issued his portion of the retainer. Therefore, she will not work on the file until the retainer has been paid in full." (Doc. 364, App. 37.) Wife attached the guardian's correspondence as Exhibit B. It states: "I have us scheduled for our initial meeting on the 14th but wanted to remind you that all initial meetings are contingent to the retainer being paid in full, from both parties, prior to the initial meeting," and, in the guardian's

standard introduction letter, "Please note initial meetings will not occur unless the retainer has been paid and the intake form has been received." (Doc. 364, Ex. B, App. 41, 42.)

17. **The access terms are operating.** The same exhibit states: "I meet with all children over the age of two at a neutral location, typically their daycare or school. These meetings occur without prior notice to either party in order to preserve the integrity of my communication with the child(ren)." And: "Any records provided to me will remain in my custody and will not be shared with the other party." (Doc. 364, Ex. B, App. 43.)

18. **The sanction sought.** Wife's contempt motion asks the trial court to "modify the children's current schedule to permit Respondent visitation only every other weekend until the children's well-being may be assessed by way of compliance with this Court's Order as to the Guardian Ad Litem," and its prayer requests a "modified child sharing plan with Respondent having the children only ever other weekend for the overnight stays." (Doc. 364, App. 38, ¶¶ 13, 15.)

III. THE NATURE OF THE RELIEF SOUGHT

19. Husband asks this Court to grant the petition and to quash, in their entirety, the Amended Order Appointing Guardian ad Litem entered

August 4, 2026, and the Order Appointing Guardian ad Litem entered July 23, 2026, in their entirety.

20. **In the alternative.** If this Court declines to quash the orders in their entirety, Husband asks in the alternative that it quash paragraphs 3, 6, 7, 11, 12, 13, 14, 16, 17, 18, and 19 of the Amended Order Appointing Guardian ad Litem entered August 4, 2026, the corresponding terms of the July 23, 2026 order, and the consent and waiver recitals identified below. Certiorari relief may be directed at particular provisions: in *Delgado v. Miller*, 314 So. 3d 515, 518-19 (Fla. 3d DCA 2020), this relief took exactly that form, the court quashing three paragraphs of the order before it and leaving the remainder standing. Husband asks for that relief only if the broader relief is denied.

21. Husband objects to all three of the orders on the guardian ad litem and to the specific provisions referenced herein. He does not ask this Court to sever any provision, and does not ask that any part of those orders be left standing. He objected in writing to the cost and the risk of a guardian ad litem before one was ordered. He moved for reconsideration and vacatur on July 28, 2026, and again on August 16, 2026. Husband's pending petition in No. 2D2026-1955 challenges the appointment itself. This petition challenges the instruments that

implemented it and the terms those instruments impose. Neither asks that any part of the appointment survive.

IV. ARGUMENT

A. The order authorizes the adjudication of parental rights on evidence a parent may never see or test.

22. **The findings the statute requires were never made.** Section 61.401 permits appointment of a guardian ad litem in a dissolution action where the court "finds it is in the best interest of the child." The order granting this appointment makes three findings and no others. It finds that Wife "is requesting a guardian ad litem to assist the Court with her concerns regarding parenting of the minor children by the Father." It finds that "Father stated multiple times that he is not a bad parent and in fact, is an excellent parent." And it finds that the Court "believes that it would be in the best interest of the children to have a guardian ad litem to investigate the issues in this case and to provide the Court with some information to aid in its decision-making." (Doc. 337, App. 60.)

23. The order finds that Wife has concerns. It does not find that the concerns have a basis. It identifies no incident, no date, no observation, and no witness. The only finding it makes about Husband is that he denied the allegation. The motion that produced the appointment, filed

December 13, 2024, identifies no incident, no date, and no witness either. (Doc. 69, App. 62 to 64.) A paragraph-by-paragraph catalogue of the allegations Wife has made about Husband, each quoted with its page, appears at App. 65 to 68.

24. **The court asked for a written summary of the testimony and never received one.** The motions were partly heard on April 3, 2025. On April 7, 2025 at 9:58 a.m. the court wrote to Wife's counsel: "Please provide the Court with a summary, IN WORD, copying Mr. Hanson, with a summary of the testimony presented by Ms. Hanson at the hearing on Friday. The Court, is otherwise, preparing the orders with respect to same." Counsel replied at 10:02 a.m. the same morning: "Good morning. I am happy to do that. I will need a couple of days." No summary was produced. On April 15, 2025, Husband moved to strike the motions for lack of prosecution and attached that exchange. (Doc. 177, App. 84 to 87.) The appointment issued fourteen months later, on the three findings quoted above, and no summary of the testimony supporting it appears anywhere in this record.

25. The order also recites that the matter "was heard over the course of three separate days." Three hearing days produced the three findings quoted above.

26. A parent's interest in the care, custody, and control of his children is a fundamental liberty interest, and no person may be deprived of liberty without due process of law. Art. I, § 9, Fla. Const.; U.S. Const. amend. XIV, § 1. The Legislature implemented that guarantee in the guardian ad litem statutes by conditioning the guardian's access to records on notice and a hearing, and by scoping the guardian's confidentiality narrowly. The order under review reverses the first condition and enlarges the second into a privilege the Legislature did not create.

27. **Paragraph 12 closes the file.** It requires the guardian to keep all information and documents received from any source confidential, and permits disclosure only "in the Guardian *ad Litem*'s sole discretion, in a report served upon both parties and their counsel, or as directed by the Court." It then provides that "[n]either party shall have the ability to obtain in any manner the Guardian *ad Litem*'s notes, file, or other file/investigative materials, as all such materials are privileged, confidential, and are not discoverable by either party for any reason." (Doc. 365, App. 11 to 12.) The disclosure exception is the guardian's own conclusions, released at her sole discretion. The inputs, her notes, file, and investigative materials, are barred "in any manner" and "for any

reason." A parent receives what the guardian chooses to say and may never examine what it rests on.

Paragraph 14 opens the courtroom to whatever is in that closed file. It provides that "the technical rules of evidence do not exclude the Guardian *ad Litem*'s reports, recommendations (interim, partial, temporary, final, formal, or informal) or the Guardian's testimony from consideration by the Court, including waiver of hearsay and authentication." It then provides that "the parties expressly waive all hearsay rules and/or hearsay objections to statements, documents, reports, recommendations, or other information from the child(ren), from third parties, from experts/professionals, and/or from any other person or entity in Guardian *ad Litem*'s testimony, statements, reports, and recommendations of including hearsay within hearsay," and that the guardian "may advise the Court orally or in writing as to statements and/or information obtained from any source in the Guardian *ad Litem* sole discretion." (Doc. 365, App. 12.) The waiver is scoped to the guardian's own testimony, statements, reports, and recommendations. That scope is the mechanism: everything she gathers reaches the court through her, immunized from the hearsay rules and from authentication, at second hand and at her sole discretion.

Read together the two paragraphs form a closed loop. Everything the guardian gathers, from any source, may be placed before the court through her, unsworn, unauthenticated, and at second hand. Nothing she gathers may be obtained by the parent against whom it is used. The order supplies no mechanism by which a parent may learn the identity of a source, test a statement attributed to a child, or examine a document the guardian relied on. The interest at stake is the one article I, section 9 protects. A parent facing an adjudication of his parental rights on material he is forbidden to obtain has no way to be heard on it, and the order supplies no substitute for the examination it forecloses.

28. The statute does not authorize this. Section 61.404 provides that the guardian "shall maintain as confidential all information and documents received from any source described in s. 61.403(2)." The confidentiality the Legislature created is a shield over one defined category, records obtained by court order under section 61.403(2). Paragraph 12 converts it into a blanket evidentiary privilege over the guardian's entire file, sourced from anywhere, absolute in its terms, and running against the parents. Sections 61.401 through 61.405 create no such privilege.

29. Paragraphs 12 and 14 of the order under review complete the structure. They make the appointee's account of that same subject

admissible from any source, including hearsay within hearsay, while placing the material underlying it beyond either parent's reach "in any manner" and "for any reason." The order does not test the allegations that produced the appointment. It forecloses testing them, and then admits the appointee's conclusions about them. Husband does not ask this Court to decide whether any allegation is true. He asks it to notice that the order makes the question permanently unexaminable.

30. **Why this cannot be repaired on appeal.** The injury is to the existence of a reviewable record. A parent who cannot obtain the material cannot make a record of what it contained, cannot proffer it, and cannot cross-examine on it. On appeal from a final judgment there would be nothing to review, because the order forbade the creation of the record that review requires.

31. **Structural conflict, and the absence of findings.** Two features of this record bear on whether correction below was available. The trial judge is a named defendant in a separate pending action that Husband is prosecuting, *Hanson v. Thirteenth Judicial Circuit, et al.*, No. 25-CA-010255 (Fla. 13th Cir.). Husband raised that ground by verified motion on June 10, 2026, stating that the motion "does not ask the Court to decide any contested issue in the dissolution" but "asks only that this

cause be heard by a judge who is not, at the same time, a defendant in litigation the very party before him is actively prosecuting." (Doc. 329, App. 69 to 75.) The motion was denied the same day on the successive-motion provision of Florida Rule of General Practice and Judicial Administration 2.330(i), on the ground that a different judge had earlier been disqualified. The order finds that the successor judge "can be fair and impartial in this case" and that the motion is "legally insufficient as a matter of law." It does not address the defendant status the motion raised. (Doc. 331, App. 76 to 77.) And the court has declined to find facts: the entire findings content of the nine-page order is the single sentence quoted in paragraph 10, and Husband's July 28, 2026 verified motion for reconsideration, for a stay under rule 9.310(a), and to modify the retainer deadline drew a form order whose checked box reads "The matter is not an emergency and should be handled in the normal course," with no hearing date and no ruling on the stay request to this day. (App. 7-15, 44-45.) Husband asserts no bias and asks this Court to find none. He states these facts for one purpose, which is that the correction the certiorari standard contemplates has not been available below.

32. **Preservation.** Husband's verified motion of July 28, 2026 objected by paragraph number to paragraphs 6, 7, 12, 16, and 19. It made no paragraph-specific objection to paragraph 14. The reason appears on the face of the record: paragraph 14 appears nowhere on the order as the clerk displayed it. It sat on a page absent from the docketed image, and the complete instrument was not entered until August 4, 2026. Paragraph 11 stands differently, and Husband says so rather than leaving it to Wife: paragraph 11 was legible on the docketed face. It is pressed here as a pure question of law, the text of the order against the text of the statute, which needs no factual development below. (App. 2-6, 6-14, 15-34.)

B. Paragraph 11 copies section 61.403(2) and reverses its mandatory condition.

33. Section 61.403(2) provides:

> The guardian ad litem, through counsel, may petition the court for an order directed to a specified person, agency, or organization, including, but not limited to, hospitals, medical doctors, dentists, psychologists, and psychiatrists, which order directs that the guardian ad litem be allowed to inspect and copy any records and documents which relate to the minor child or to the child's parents or other custodial persons or household members with whom the child resides. Such order shall be obtained only after notice to all parties and hearing thereon.

34. Paragraph 11 tracks that subsection clause for clause and then provides: "Such an order for release of records shall be obtained only after notice to all parties and **without the necessity of a hearing** on the Guardian *ad Litem*'s request for records, unless either party objects in writing to same. The parties and the Guardian *ad Litem* agree such request and written objection(s) may be resolved by the Court without hearing." (Doc. 365, App. 11.)

35. The statute's final six words are "and hearing thereon." The order's are "and without the necessity of a hearing." An order that identifies a statute as its source of authority and then negates that statute's mandatory procedural condition departs from the essential requirements of law on the face of the document. The Court need only read two texts side by side to meet that element in the lower court's own order.

36. Paragraph 3 works the same way one page earlier. It recites that "[t]he parties specifically waive the notice requirements as set forth in section 61.403(1), Fla. Stat., to the fullest extent allowed by law." The qualifier concedes that law limits what may be waived; the recital of waiver itself remains one no party made. The order recites a waiver of the statute's notice condition, by parties who gave none, in the same

instrument that recites a waiver of the hearing condition in subsection (2). The two provisions are the same defect in two places.

37. The material injury is concrete. The records reachable under this paragraph are, by the statute's own enumeration, the medical, dental, psychological, and psychiatric records of the children and of their parents and household members. The order removes the hearing that the Legislature made the condition of obtaining them.

C. Paragraph 16 conditions the children's statutory report on payment, and paragraph 13 makes it optional.

38. Section 61.403(5) provides that the guardian ad litem "**shall file** a written report which may include recommendations and a statement of the wishes of the child," and that "[t]he report must be filed and served on all parties at least 20 days prior to the hearing at which it will be presented unless the court waives such time limit."

39. Paragraph 16 provides: "The Guardian is entitled to be paid in full prior to the providing and/or filing of any Report and Recommendations. In the event the Guardian is not paid in full, the Report and Recommendations is not required to be provided or filed until satisfactory arrangements have been made for payment." (Doc. 365, App. 13 to 14.) Paragraph 13 speaks of the report in the permissive,

providing that the guardian "may prepare and file with the Court a written report," though it carries the statute's twenty-day timing forward. (Doc. 365, App. 12.)

40. The report is the instrument through which the children's interests reach the court. The statute makes filing it mandatory. The order makes it a purchased deliverable. It says in terms that the report need not be produced until payment arrangements are satisfactory. If neither parent pays, the children get nothing.

41. This is not a theoretical objection. Wife's own filing establishes that the guardian "will not work on the file until the retainer has been paid in full," and that initial meetings are "contingent to the retainer being paid in full, from both parties." (Doc. 364, App. 37 and Ex. B, App. 41.) A statutory duty owed to the children has been suspended for nonpayment, and the opposing party filed the proof.

42. **The Court's avoidance of the parties' financial abilities.** The authority to charge a parent exists, and Husband states it rather than leaving it to Wife. The appointment of a guardian ad litem is a cost of the litigation, and section 61.16(1), Florida Statutes, requires the trial court to consider the parties' financial ability before imposing costs. *Levy v. Levy*, 388 So. 3d 932, 936 (Fla. 3d DCA 2024). Husband does not

contend that the court lacked power to allocate the guardian's fee. He contends that the power is conditioned, and that the condition was not met.

43. **The condition is a finding, and there is none.** In *Levy* the Third District could not determine whether the trial court had abused its discretion in ordering a parent to pay half of a guardian ad litem's fees, because the order made no findings as to the parties' financial ability to pay them. 388 So. 3d at 937. Four months ago the Fourth District applied the same rule to an order assigning a guardian's fee to one parent with a reservation to reallocate later: "the order failed to contain express findings as to the former wife's ability to pay. This was a fatal flaw." *MacDonald v. MacDonald*, No. 4D2025-3043 (Fla. 4th DCA Apr. 29, 2026). *MacDonald* also identified what a trial court may do when an appointment cannot wait. It may base the finding on the existing record and say that it has done so, or it may defer the allocation for a reasonable time. "Either way, the record must reflect the requisite finding or the deferment of that finding for a reasonable time." *Id.* The order under review does neither. It allocates the retainer fifty percent to each parent and requires payment within three days of entry, "subject to later reallocation upon written agreement or court order." It contains no

finding about either parent's financial ability anywhere in its nine pages. A reservation to reallocate is the very device the *MacDonald* trial court used, "with reservation to reallocate at a later time if the evidence so supports," and the Fourth District reversed notwithstanding it. The reservation does not substitute for the finding, because the obligation operates now and the finding comes never. The absence is not incidental. The first-filed motion in this case sought discovery of Wife's income and assets and has never been ruled on. A court cannot determine what a parent is able to pay while the record of what the other parent has is the one thing that has never been produced.

44. **What the order adds is a private collection mechanism that taxation as costs does not supply, and certiorari is the vehicle for reviewing it.** Where the Legislature authorized charging parents for a court-appointed neutral elsewhere in chapter 61, it kept the charge under the court's control and attached protections this order omits. Section 61.20(3) requires that a social investigator's bill "be taxed and ordered paid as costs in the proceeding." Section 61.125(7) forbids ordering parties into parenting coordination without their consent unless the court determines that they can pay, requires the court to consider whether the fees "would create a substantial hardship," and carves out

parties found indigent. In place of taxation as costs, this order supplies a private trust account, an invoice cycle, a default trigger, an ex parte remedy, and, in paragraph 16, the suspension of the children's statutory report until payment arrangements satisfy the appointee. Certiorari lies to review a prepayment condition of this kind where no determination of responsibility or of ability to pay has been made. *Adkins v. Sotolongo*, 227 So. 3d 717, 719 (Fla. 3d DCA 2017) (granting certiorari where "the trial court has not yet determined which of the parties are responsible for the payment of the guardian's fees" and "has not yet made a determination as to Ms. Adkins' ability to pay"). Husband states the distinction before Wife does: the petitioner in *Adkins* had adjudicated indigency status and Husband does not. The absence of any ability-to-pay determination is present here regardless, and it is the defect *Levy* and *MacDonald* identify. Husband states a second limitation of *Adkins* himself: the prepayment there was imposed as a condition of deposing the guardian, and the majority's irreparable-harm holding rests on the denial of that discovery. *Adkins* is offered for the proposition that a prepayment condition entered without any determination of responsibility or ability to pay is reviewable, not as a case on identical facts.

45. **Paragraph 7 imposes a paid third-party service that no motion requested.** Paragraph 7 directs that, outside emergencies, all communications regarding the children occur exclusively through the OurFamilyWizard platform. It requires each parent to maintain "an active OFW subscription at his or her own expense," to check the account at least once daily and to respond to communications within twenty-four hours, and directs both parents to grant the guardian professional access to the account, allowing her to review its communications, calendar entries, and records. (Doc. 365, App. 9 to 10.) On the face of the order as the clerk displayed it on July 23, the paragraph is headed and then truncates mid-sentence, and its operative terms first become legible in the August 4 order. Doc 69, the motion that sought the appointment, names no application, and its prayer asks only for appointment and for allocation of cost. (App. 2-6, 6-14, 61-63.)

D. Paragraph 18 removes the condition the Legislature attached to guardian immunity and extracts a prospective release of claims.

46. Section 61.405 provides, in its entirety:

> Any person participating in a judicial proceeding as a guardian ad litem shall be presumed prima facie to be acting in good faith and in so doing shall be immune from any liability, civil or criminal, that otherwise might be incurred or imposed.

47. The immunity chapter 61 confers is real, and Husband does not contend otherwise. It is also conditional, and the condition is a rebuttable presumption. The statute presumes good faith **prima facie**, which by definition may be overcome. The presumption exists in order to be capable of being tested, and it places the burden of going forward on the party who would rebut it.

48. Paragraph 18 removes the condition. It provides that the guardian "is hereby relieved of and shall be immune from any liability for any action performed in the furtherance of her responsibilities and duties as set forth herein," with no reference to good faith and nothing left to rebut. It then provides that "[e]ach party hereby waives any and all claims they may have or shall have in the future with regard to any actions, recommendations, testimony, or conduct of by the Guardian *ad Litem*, whether now and in the future." It closes by naming the statute: "The immunity provided by section 61.405, Fla. Stat., shall not be exclusive but in addition to all other afforded to a court appointed Guardian *ad Litem*." (Doc. 365, App. 14.)

49. Two defects appear, each independent of the other. First, the order enlarges a statutory immunity that the Legislature calibrated, and the paragraph's own final sentence announces that it is doing so. Second,

and more simply, the order does not merely immunize. It declares that the parties have released their own future causes of action. No party stipulated to that. A recital of consent by a party who is contemporaneously moving to vacate the order is not a finding.

50. A prospective release of unaccrued claims is complete on entry, runs forward in time, and reaches claims that do not yet exist. It is not a timesharing ruling and will not be reached in an appeal from a timesharing judgment. No final judgment restores a released cause of action.

E. Paragraph 19 is a prior restraint entered without motion, notice, hearing, findings, or consent.

51. Freedom of speech is protected by article I, section 4 of the Florida Constitution and by the First Amendment. This Court has held that limitations on protected speech "must be considered presumptively invalid and may be justified only if the purpose that is intended to be accomplished is a compelling state interest and does so by the least restrictive means." *Romero v. Erik G. Abrahamson, P.A.*, 113 So. 3d 870, 872 (Fla. 2d DCA 2012). In *Romero* this Court reversed an order restricting a party from case-related speech, where the party had posted derogatory comments online about a law firm and the pending case,

because "[t]he necessary findings required to prevent Romero from engaging in such future speech were not made by the trial court before entering the order." *Id.*

52. Paragraph 19 provides in full:

> The parents acknowledge that they are prohibited from posting any online reviews concerning the Guardian *ad Litem* and AAR Family Law, PLLC. Any postings to social media about the case shall be immediately removed and the parents authorize, Google, Avvo, Facebook, etc. to immediately remove the posts based upon this specific waiver. In the event a parent does post things adverse to the Guardian *ad Litem* and/or AAR Family Law, PLLC, they shall immediately remove the listing and be responsible for all attorney's fees and costs associated with the enforcement of **this contract** and removal of the unauthorized review.

(Doc. 365, App. 14 to 15.)

53. Five defects appear on the face of the paragraph, and each is independently sufficient.

(a) The removal command is not limited to speech about the guardian. It reaches "[a]ny postings to social media **about the case**," with no subject-matter limit, no time limit, and retroactive operation. On its terms it reaches every statement either parent has made on social media about a public dissolution proceeding.

(b) There are no findings. The order's entire findings content is the single best-interest sentence quoted in paragraph 10 above. There is no finding that either parent posted anything, no finding of harm to the children from speech, and no finding addressed to tailoring.

(c) The interest the paragraph names is a private law firm's commercial reputation. "AAR Family Law, PLLC" is named twice. The paragraph speaks of "online reviews," of "Google, Avvo, Facebook," and of "the unauthorized review."

(d) It purports to authorize non-party platforms to act on a waiver no party gave. The paragraph states that "the parents authorize, Google, Avvo, Facebook, etc. to immediately remove the posts based upon this specific waiver." Neither parent gave that authorization, and none of the named entities is before the court.

(e) It calls itself a contract. Paragraph 19 makes each parent "responsible for all attorney's fees and costs associated with the enforcement of **this contract**," while paragraph 20, on the next line, reserves jurisdiction "for the purposes of enforcement of this Order." A court order is not a contract. This one identifies no consideration, no signatures, and no assent.

54. Certiorari is the established vehicle for review of such a provision. In *Delgado*, 314 So. 3d at 518-19, the court granted certiorari and quashed a gag provision barring either party from social media comment on "the other party's emotional or mental health or personal behavior," together with two related paragraphs. The restrictions "were imposed sua sponte by the general magistrate in its recommended order, and adopted thereafter by the trial court without a hearing," and "[n]either party moved for the imposition of such restrictions." The court held that their inclusion "constitutes a departure from the essential requirements of law, causing material injury which will continue throughout the remainder of the proceedings, for which there is no adequate remedy on appeal." *Id.* at 518-19.

55. The harm is not repairable later. The order commands removal "immediately." Speech suppressed while a case proceeds is not restored by the judgment that ends it.

F. Paragraph 6 and paragraph 17 contradict each other, and together they move fact-finding to the appointee.

56. Paragraph 6 provides: "As this Guardian *ad Litem* is a licensed attorney in good standing with the Florida Bar, the parties waive any requirement that the Guardian *ad Litem* must question witnesses,

conduct discovery, or otherwise address the Court through a separate attorney representing the Guardian *ad Litem*." (Doc. 365, App. 9.)

57. Paragraph 17 provides that "the Guardian shall be entitled to obtain legal counsel of her choice relating to the Guardian's involvement in this matter in any hearings, depositions, motions, or other proceedings. The cost of which shall be paid by the parties 50% Mother/50% Father upon request of the Guardian prior to the event occurring. Should the parties fail to make timely payment of the Guardian's reasonable attorney fees upon request, the Guardian shall not be required to attend the event." (Doc. 365, App. 14.)

58. One paragraph dispenses with the guardian's separate counsel. Eleven paragraphs later the parents must prepay separate counsel of the guardian's sole choice, in an amount the order does not state, before each event, or the guardian will not attend. Paragraph 6 forecloses the only apparent defense of paragraph 17, which would be that section 61.403's "through counsel" language requires someone to fund counsel. The order removed that requirement and then charged the parents for it.

59. Section 61.401 provides that the guardian acts as the children's representative and not as attorney or advocate. This Court has cautioned trial judges "against abdicating their decision-making

responsibility to a guardian ad litem," and has stated that "pursuant to section 61.403, guardians shall not act as advocates." *Roski v. Roski*, 730 So. 2d 413, 414 (Fla. 2d DCA 1999). Paragraph 6 removes the statutory intermediary, paragraph 14 makes the appointee's untested conclusions admissible, and paragraph 12 forecloses testing them. The functional result is that fact-finding moves to the appointee. This Court has held that "it is never appropriate for a parenting coordinator to act as a fact-finder or otherwise perform judicial functions." *Hastings v. Rigsbee*, 875 So. 2d 772, 776 (Fla. 2d DCA 2004). Husband states the distinction himself: the appointee in *Hastings* was a parenting coordinator rather than a guardian ad litem, and the case is offered for the delegation principle and for its non-party holding, not as an identical appointment.

G. Irreparable harm, on this record rather than on prediction.

60. Certiorari requires harm that cannot be corrected on postjudgment appeal. This record supplies it in the most concerning and compelling manner possible, the welfare of children. The documents that supply it were filed by the opposing party in this litigation, and by Judge Felix, who is the opposing party in separate litigation.

61. **The sanction sought for nonpayment is parenting time.** Wife's contempt motion asks that Husband's schedule be modified "to permit Respondent visitation only every other weekend until the children's well-being may be assessed by way of compliance with this Court's Order as to the Guardian Ad Litem." (Doc. 364, App. 38, ¶ 13.) The prayer repeats the request. (*Id.* ¶ 15.) Whatever may generally be said about orders directing the payment of money, the relief actually requested on this record is a reduction in a parent's time with his children.

62. **The guardian has stopped work on the children's file.** Paragraph 16 is in operation. (Doc. 364, App. 37 and Ex. B, App. 41, 42.)

63. **The access terms are in operation.** The guardian's published practice is to meet the children at school "without prior notice to either party," and to keep records "in my custody," not "shared with the other party." (Doc. 364, Ex. B, App. 43.) This Court need not predict how those terms will be applied. The appointee has described how she applies them and Wife filed the description.

64. **The sequence, stated without characterization.** Contempt for violating the appointment terms was moved at 9:49 a.m. on August 4, 2026. The complete text of the order was signed at 4:58 p.m. that day. The motion seeking to extend the retainer deadline was placed in the

"normal course" with no hearing date, five days after the deadline it addressed had expired. The motion seeking to enforce that same deadline was set for hearing within three days of its filing. Each of those facts appears on the face of an order or a filing. (App. 16-35, 35-43, 44-45, 46-47.) Husband draws no inference about how these features arose. He relies on the sequence for one purpose: to show that no interval exists in this record in which a party could have obtained a ruling on an objection before the obligation matured.

65. **Relief was sought below.** Husband moved for reconsideration and for a stay under rule 9.310(a) on July 28, 2026, and moved again on August 16, 2026 as to the amended order. He has received no ruling on the stay request.

V. CONCLUSION

66. The order under review identifies section 61.403 as its source of authority and then reverses that statute's mandatory hearing condition. It converts a narrow statutory confidentiality into an absolute privilege running against the parents. It admits the appointee's hearsay from undisclosed sources while foreclosing any means of testing it. It conditions a statutory duty owed to the children on payment. It removes the good-faith condition the Legislature attached to immunity and

declares that the parents have released claims that do not yet exist. It orders the removal of any social media posting about a public court proceeding, and names a private firm's commercial review profile as the interest protected. It does all of this in the language of an agreement no party made, and it calls itself a contract.

67. Husband respectfully requests that this Court grant the petition; quash the Amended Order Appointing Guardian ad Litem entered August 4, 2026 and the Order Appointing Guardian ad Litem entered July 23, 2026 in their entirety; and grant such further relief as the Court deems just.

Respectfully submitted,

s/Chris Hanson
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CERTIFICATE OF SERVICE

I certify that a true and correct copy of the foregoing was served on August 21, 2026, through the Florida Courts E-Filing Portal and by email upon

Sarah Sorgie Hanson, Esq. (Fla. Bar No. 065956), Respondent in this proceeding and Petitioner below, self-represented, P.O. Box 22376, Tampa, FL 33622, at flcourts@aainsco.com and sahanson@aainsco.com.

s/Chris Hanson
Christopher A. Hanson

CERTIFICATE OF COMPLIANCE

I certify that this petition complies with the font requirements of Florida Rule of Appellate Procedure 9.045 and with the word count limit of Florida Rule of Appellate Procedure 9.100(g). This petition is set in Arial 14-point and contains 7684 words as counted by the word-processing system used to prepare it, exclusive of the caption, certificate of service, certificate of compliance, and signature block.

s/Chris Hanson
Christopher A. Hanson